

COURT ONLINE COVER PAGE

IN THE LABOUR COURT OF SOUTH
AFRICA HELD AT CAPE TOWN

CASE NO: **2026-077546**

In the matter between:

Wilbur William Matthee

Plaintiff / Applicant

and

**Afrocentric Health (RF) (PTY)
LTD, Medscheme Holdings (PTY)
LTD, Afrocentric Investment Corporation
Limited**

Defendant / Respondent

Proof of Service

NOTE: This document was filed electronically by the Registrar on 15/4/2026 at 12:27:21 PM South African Standard Time (SAST). The time and date the document was filed by the party is presented on the header of each page of this document.



ELECTRONICALLY SIGNED BY:

**Registrar of The Labour Court,
Cape Town**

IN THE LABOUR COURT OF SOUTH AFRICA, CAPE TOWN
(Held at Cape Town)

Case No: 2026-077546

In the matter between:	
WILBUR WILLIAM MATTHEE	Applicant
and	
AFROCENTRIC HEALTH (RF) (PTY) LTD	Respondent
(Registration Number: 1996/009540/07)	

AFFIDAVIT OF SERVICE
(Rule 7 of the Labour Court Rules — Email Service)



I, the undersigned,

WILBUR WILLIAM MATTHEE

Adult male, Identity Number: 890903 5151 087

Registered Nurse (SANC No. 15831886)

Applicant (Self-Represented), residing in Cape Town, Western Cape

do hereby make oath and state as follows:

1. INTRODUCTION AND CAPACITY

1.1 I am the Applicant in the above-captioned proceedings, acting in my own capacity as a self-represented litigant. I am duly authorised to make this affidavit. The facts herein are within my personal knowledge unless otherwise stated, and are true and correct to the best of my knowledge and belief.

1.2 I make this affidavit in compliance with Rule 7 of the Rules for the Conduct of Proceedings before the Labour Court (GN 1665 of 14 October 2011, as amended), to confirm the service of the pleadings in Case No. 2026-077546 on the Respondent.

2. THE PROCEEDINGS

2.1 This case concerns a claim under section 77A of the Basic Conditions of Employment Act 75 of 1997 ("BCEA") for the unlawful salary deduction of R14,811.77 (representing 40.47% of gross monthly salary) effected by the Respondent in July 2025, in contravention of the 25% statutory cap imposed by section 34(2) of the BCEA.

2.2 The Notice of Motion and Founding in the above proceedings was filed with the Registrar of the Labour Court, Cape Town, on 13 April 2026,

3. AUTHORISED SERVICE ADDRESS OF RESPONDENT

3.1 The Respondent's authorised email address for service of documents in these proceedings is:

IR@afrocentrichealth.com

3.2 This email address was expressly stated by the Respondent's authorised representative, Mr Xolile Vincent Manyati (Senior Employee Relations Specialist, AfroCentric Health (Pty) Ltd), in the Respondent's Notice of Opposition of Condonation Application and Answering Affidavit dated 10 December 2025, filed in CCMA Case WECT23564-25. A copy of the relevant page of that document confirming the service address is attached hereto as

ANNEXURE "A"

4. SERVICE EFFECTED

4.1 On

13 April 2026

I dispatched by email to the address IR@afrocentrichealth.com the following documents:

- (a) The Statement of Claim filed in Case No. 2026-077546 (Matthee v AfroCentric Health (RF) (Pty) Ltd) — BCEA section 77A unlawful salary deduction claim;
- (b) All annexures referenced therein and forming part of the filed papers; and
- (c) This Affidavit of Service.

4.2 The email was sent from info@ethichawks.co.za and was delivered successfully to the Respondent's authorised service address. A copy of the email transmission and delivery confirmation is attached hereto as

ANNEXURE "B"

5. CONFIRMATION OF SERVICE

5.1 I confirm that service was effected by electronic mail as expressly provided by the Respondent as their chosen service address in the opposing affidavit, which constitutes valid service in terms of Rule 7(2)(b) of the Labour Court Rules, read with the authorisation given by the Respondent.

5.2 I submit that service has been duly effected and that the Respondent has been properly placed on notice of the proceedings in Case No. 2026-077546.

6. ANNEXURES

The following documents are attached to and form part of this Affidavit of Service:

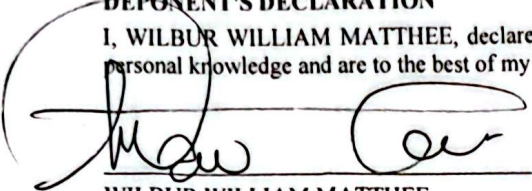
Annexure "A": Notice of Opposition and Answering Affidavit of Mr Xolile Vincent Manyati, dated 10 December 2025 (CCMA Case WECT23564-25), confirming IR@afrocentrichealth.com as the Respondent's authorised service address.

Annexure "B": Email transmission record and delivery confirmation confirming service of the BCEA s77A Notice of Motion and Founding Affidavit on 13 April 2026.



DEPONENT'S DECLARATION

I, WILBUR WILLIAM MATTHEE, declare that the facts set out in this affidavit are within my personal knowledge and are to the best of my knowledge and belief true and correct.



WILBUR WILLIAM MATTHEE

Applicant / Deponent

info@ethichawks.co.za | Tel: 069 635 1435 / 063 378 8782

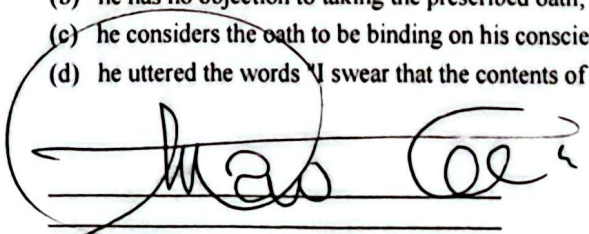
Signed at CAPE TOWN on ¹³ April 2026

wmm

**COMMISSIONER OF OATHS**Full Name: BENJAMIN JAMES MASEMOLADesignation / Capacity: BA 25513Address: 18 DIGTEBY CRESCENT VOORBRUG DELFT

I certify that on this 13TH day of APRIL 2026, the deponent appeared before me and acknowledged that:

- (a) he knows and understands the contents hereof;
- (b) he has no objection to taking the prescribed oath;
- (c) he considers the oath to be binding on his conscience; and
- (d) he uttered the words "I swear that the contents of this declaration are true, so help me God."


~~DEPONENT~~

COMMISSIONER OF OATHS

WILBUR WILLIAM MATTHEE

Signed at CAPE TOWN on this 12TH day of APRIL 2026.

PASTOR BENJAMIN J. MASEMOLA
MARRIAGE OFFICER
COMMISSIONER OF OATHS
No. 18 DIGTEBY CRESCENT
VOORBRUG DELFT 7100
Cell: 082 991 0844



A N N E X U R E

“A”

NOTICE OF OPPOSITION OF CONDONATION APPLICATION

Confirming Respondent's Authorised Email Service Address

Forum	Commission for Conciliation, Mediation and Arbitration
Case Reference	WECT23564-25
Parties	Wilbur Matthee (Applicant) v Medscheme Holdings (Respondent)
Document Type	Notice of Opposition of Condonation Application
Deponent	Mr Xolile Vincent Manyati — Senior Employee Relations Specialist
Signed	Johannesburg, 10 December 2025
Authorised Service Email	IR@afrocentrichealth.com
Relevance	Paragraph 3.2 — Respondent's own designated service address

Referred to in paragraph 3.2 of the Affidavit of Service

Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd · Case No: 2026-083299

IN THE COMMISSION FOR CONCILIATION MEDIATION AND ARBITRATION

Case Ref. Number: **WECT23564-25**

In the matter between

WILBUR MATTHEE

Applicant

And

MEDSCHEME HOLDINGS

Respondent



NOTICE OF OPPOSITION OF CONDONATION APPLICATION

Your condonation application dated **05 December 2025**, is hereby acknowledged and refers.

In response to the condonation application by the applicant **BE PLEASED TO TAKE NOTE THAT** the Respondent hereby files its Notice of Opposition.

PLEASE TAKE FURTHER NOTE THAT the answering affidavit of **Mr XOLILE VINCENT MANYATI** will be used in support of this notice of opposition.

The respondent will accept all documents in this matter at the following email address:
IR@afrocentrichealth.com.

Signed at **Johannesburg** on the **10th** day of **December 2025**.

XOLILE VINCENT MANYATI

Respondent representative

A N N E X U R E

“B”

EMAIL TRANSMISSION RECORD — PROOF OF SERVICE

Electronic service effected 13 April 2026



Case Number	2026-083299
From	info@ethichawks.co.za (Wilbur William Matthee)
To (Primary)	ir@afrocentrichealth.com
To (Copy)	lebohang.mpumlwana@afrocentrichealth.com
Bcc	wilburmat@gmail.com (personal confirmation copy)
Date & Time	13 April 2026 at 10:03 PM SAST
Subject	Service of Statement of Claim — W.W. Matthee v Afrocentric Health (RF) (Pty) Ltd & Another
Read Receipt	blue tick (✓) — confirmed delivery
Relevance	Paragraph 4.2 — Proof of email service on Respondents

Referred to in paragraph 4.2 of the Affidavit of Service

Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd · Case No: 2026-083299

**Service of Application – Wilbur William Matthee v
Afrocentric Health (RF) (Pty) Ltd & Medscheme Holdings
(Pty) Ltd – Case No: 2026-077546**

Delivered



Wilbur William Matthee 10:03 PM
to ir, lebohang.mpumlwana, Bcc: wilburmat ✓



Dear Sirs / Madam

NOTICE OF SERVICE – LABOUR COURT APPLICATION

Please find attached the following documents on behalf of the Applicant, Mr Wilbur William Matthee, in the above-mentioned matter under Case No: 2026-077546:

1. Notice of Motion (pages 1–4)
2. Founding Affidavit of Wilbur William Matthee (pages 5–11)
3. Annexure A – Payslip July 2025 (page 14)
4. Annexure B – Human Capital Business Partner Policy extracts (page 16)
5. Annexure C – Written misrepresentation by Second Respondent's manager (page 18)



These documents are served on the First and Second Respondents in accordance with the Labour Court Rules and the Basic Conditions of Employment Act (BCEA) s34(1) and s34(2) read with s77A.

Please note that the Applicant will seek an order for the repayment of unlawfully recovered remuneration as set out in the Notice of Motion.

Kindly confirm receipt of this service in writing.

Yours faithfully

Sr. Wilbur W Matthee

Specialist Registered Nurse, BTech (Psych, Midw,Comm), PG Dip HSM (NQF 8)

Health Services Management.

Founder EthicHawks (Forensic Governance and Compliance)



www.ethichawks.co.za

